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California law will ban ultra-processed foods in school meals

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California's first-in-the-nation law to phase out ultra-processed foods (UPFs) in public schools is now on Gov. Gavin Newsom's desk. Differing versions of Assembly Bill 1264 passed both chambers of the California Legislature with only one dissenting vote. It had to be returned to the Assembly to reconcile the final version with the one adopted by the state Senate.

It's all complete, but it's also complicated.

AB 1264, authored by Assemblymember Jesse Gabriel, establishes a definition of UPFs and directs experts at the California Department of Public Health to identify a subcategory of especially harmful ones to be phased out of public schools by 2035.

And what may be the first legislative definition of UPFs is not simple. Here is how the Senate Health Committee explained AB 1264:

"(The bill) defines ultraprocessed food as any food or beverage that contains a substance described below [except additives described below], and that has either high amounts of saturated fat, sodium, or added sugar, as defined in 6) below, or a nonnutritive sweetener or other substance described below.

"Specifies, as part of the definition of UPF, that a food is UPF if it has a substance available in the federal Food and Drug Administration's (FDA) Substances Added to Food database that is designated as having any of the following FDA-defined technical effects, except for substances described. below, and the food meets the other requirements of the definition:

a) Surface-active agents, as defined in federal regulations;

b) Stabilizers and thickeners, as defined in federal regulations;

c) Propellants, aerating agents, and gases, as defined in federal regulations;

d) Colors and coloring adjuncts, as defined in federal regulations;

e) Emulsifiers and emulsifier salts, as defined in federal regulations;

f) Flavoring agents and adjuvants, as defined in federal regulations; and,

g) Nonnutritive sweeteners, as defined in federal regulations.

Like other recent food safety reforms authored by Gabriel, Consumer Reports, and the Environmental Working Group, helped AB 1264 through the legislative process.

"Foods served in schools should fuel kids' bodies and brains for learning, but harmful ultra-processed foods do the opposite," said Brian Ronholm, director of food policy at Consumer Reports. "They offer little nutritional value and are deliberately engineered to make them hard to resist, which encourages unhealthy eating habits and overconsumption.

"Students should be provided with healthier options at school instead of ultra-processed food that puts their health

at risk. This bill will help protect California kids and establish an important new standard for the rest of the nation by getting harmful ultra-processed food out of our schools."

The new California law will define ultra-processed foods as those that are "high in" saturated fat, added sugar, or sodium (or contain a non-sugar sweetener) and include one or more of certain industrial ingredients, including colors, flavors, sweeteners, emulsifiers, and thickening agents. Raw agricultural products, minimally processed foods, and pasteurized milk are exempt from the definition of UPFs.

The job of identifying subcategories of "UPFs of concern" to be phased out of school foods will be left to the California Department of Public Health. It is tasked with using such factors as:

* Whether the substance is banned, restricted, or subject to warnings in other states or outside the U.S.;

* whether the substance, based upon peer-reviewed evidence, is linked to cancer, cardiovascular disease, metabolic disease, developmental harms, reproductive harms, obesity, Type 2 diabetes, or other health harms associated with UPF consumption;

* whether the substance is hyperpalatable or may contribute to food addiction;

* whether the food meets the FDA definition for "healthy;" and

* whether the food is a UPF due to a "common natural additive."

UPFs, including soft drinks and packaged snacks, are harmful to human health and contribute to cancer, cardiovascular disease, and Type 2 diabetes.

During the past two years, the California Assembly has enacted a ban on Red Dye 3 and other toxic chemicals in food sold in the state, as well as a ban on six other harmful synthetic dyes in school foods.

California's reforms, especially on food additives, led the way for 17 other states during the 2025 legislative season to introduce 103 bills targeting food dyes and chemicals, along with soda and candy purchases through the Supplemental Nutrition Assistance Program (SNAP), nutrition education, bans on ultra-processed foods, and requirements on minimum amounts of physical activity in schools. Eight of these bills have been adopted in five states.

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